



File No: EXP202300841

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the right of access against VODAFONE ESPAÑA, S.A.U. (hereinafter, the respondent) without receiving the legally established response to his request.

The claimant states that he requested access to the recording of a contract with the respondent on December 7, 2022, without obtaining a response.

Along with the complaint, a copy of the access request sent to the respondent on December 7, 2022, to the email address provided for this purpose in its privacy policy is attached.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent replies that: "Regarding this request for the exercise of rights allegedly submitted by Mr. A.A.A., it is necessary to indicate that Vodafone has no record in its systems of receiving the email mentioned by Mr. A.A.A. in his complaint, requesting access to the referred recording, nor of any other communication from the claimant regarding this request for the exercise of rights.

After receiving this information request from this Agency, at which point, as indicated in the previous statement, my client became aware of the access request referred to by the claimant, Vodafone has been able to verify that it did not receive the email mentioned by Mr. A.A.A. in his complaint requesting access to the recording he refers to. Furthermore, after conducting the necessary investigations, my client has been able to confirm that there is no record in its internal systems related to the provision of services linked to the identifying and contact details provided by Mr. A.A.A. in his complaint.

Therefore, with the data provided by the claimant, my client has been unable to verify that the claimant has or has had services linked to Vodafone, without prejudice to the fact that the services referred to by the claimant, which motivate his request, may be linked to the name of a third party unrelated to Mr.

C/ Jorge Juan, 6

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28001 – Madrid

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2/9

A.A.A.. Nevertheless, once this information request sent by this Agency was received, my represented party proceeded to respond to the claimant, forwarding a communication regarding their request to exercise the right of access. To this effect, a copy of the response sent to Mr. A.A.A. is attached as Document number 1, informing him of the actions taken by my represented party and communicating the impossibility of sending him the recording as the claimant was not registered as a Vodafone customer.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on March 8, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint filed.

The aforementioned agreement granted the responding party a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate, stating, in summary, that it had no record of having received the request from the claimant.

"Subsequently, once Vodafone became aware of said request, it responded to the claimant, informing him of the impossibility of sending the requested recording as there was no record in its internal systems related to the contracting process of services linked to the data provided by Mr. A.A.A. in his

complaint.

Following the allegations submitted in response to the information request sent by this Agency, Vodafone has proceeded to investigate the facts and the access request made by Mr. A.A.A. in his complaint, related to the contracting process carried out before my represented party. In this regard, Vodafone has located in its internal systems a telephone recording related to the aforementioned process that had not been able to be located with the information initially provided by the claimant. As a result of the complaint filed and the information transfer carried out by this Agency, new identifying data was provided, which has allowed Vodafone to locate the recording of the telephone call initially requested.”

“(…) Consequently, with the data provided by the claimant, Vodafone has proceeded to send the claimant a new communication in which the actions taken are reported and a copy of the recording of the telephone conversation held by Mr. A.A.A. with Vodafone's Customer Service on December 6, 2022, is provided (…), attaching a copy of the communication sent.

FOURTH: Examining the document submitted by the responding party, it is forwarded to the claimant, so that, within fifteen working days, they may formulate the allegations they consider appropriate, stating, in summary, that “(…) I have received the audio and it is recorded at minute 39, second 45 the improper use of a database that has been transferred from ONO to Vodafone without my consent and then, from Vodafone to Lowi, violating the consent requirement mandated by current regulations.

C/ Jorge Juan, 6

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28001 – Madrid

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3/9

“(…) That Vodafone and its subsidiary Lowi have used a database from a company without informing the clients of their data and using information related to a time-barred debt, generated by a specific disagreement due to an improper charge made by ONO at the time, for which no further claims were made at any other time.”

FIFTH: After granting a hearing to the responding party, it states that “(…) since the end of the year 2022, Lowi (formerly Vodafone Enabler) merged with Vodafone España, as was communicated through various means to the clients, so it is currently part of the same entity and is treated as one of the brands that Vodafone has. Therefore, in no case could there be a transfer of personal data, as they are the same company.”

“(…) Following the investigations carried out in the internal systems of my represented party, it has been confirmed that the debt referred to by the claimant does not originate from a debt contracted with ONO, but with Vodafone.

In this regard, Mr. A.A.A. filed, in parallel to the claim before the AEPD, on May 16, 2023, a complaint in the mailbox derechosprotecciondatos@vodafone.es informing that the debt with ONO was time-barred. As a result of this complaint, he was informed that he maintains a debt with my represented party, Vodafone, not with ONO. In light of this information, Mr. A.A.A. indicated, on May 25, 2023, that he does not recognize this debt as his own, which escalated this incident to the Fraud department of Vodafone.

After the corresponding analysis, the contract that generated the debt with Vodafone was classified as fraudulent on May 25, 2023, the same day the claimant informed us that he does not recognize this contract. Once this fact was established, the amounts owed were canceled, and the claimant was classified as a victim of fraud. Furthermore, a communication was sent informing him of these measures.

These facts were not known prior to the interactions that took place with the claimant in May 2023, as the contract that generated the debt appeared to be legitimate. Only when Mr. A.A.A. informed my represented party that he does not recognize the debt, was the case analyzed by the Fraud team, and the corresponding measures were taken.

In this regard, the claimant currently does not have any debt with my represented party, and the necessary measures have been taken to reinforce his information so that it is not used for future frauds. A letter has been sent to Mr. A.A.A. regarding these aspects, which is attached as Document

number 1 to the present allegations.

Finally, although this fact may not have ultimately occurred in this case, it is relevant to highlight that Vodafone retains debts contracted with this entity only during the legally established periods, and never exceeding them."

C/ Jorge Juan, 6

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28001 – Madrid

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4/9

"Once the present request for the deletion of personal data, submitted by Mr. A.A.A., was received, all his personal data, which are recorded in Vodafone's internal systems, have been deleted, thus addressing his claims in a timely manner.

In this regard, communication has been sent to the claimant, informing him of the actions taken by my represented party, confirming that as of today, there is no outstanding debt in the internal systems of my represented party, and regarding the proper processing of the deletion of his personal data in Vodafone's internal systems. Furthermore, apologies are extended for any inconvenience that Vodafone may have caused him. Evidence of this is provided as Document number 1."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Additionally, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing claims submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission for processing of the claim that gives rise to this procedure, the claim was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on March 8, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the claim for processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim to be accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the claimant are duly restored.

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

C/ Jorge Juan, 6

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28001 – Madrid

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6/9

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes

of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not affect

C/ Jorge Juan, 6
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28001 – Madrid
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7/9

negatively to the rights and freedoms of others, that is, the right of access will be granted in such a way that it does not affect third-party data.

V

Conclusion

Article 4 of the GDPR, Definitions, provides in its paragraphs 1 and 2:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, alignment, combination, restriction, erasure, or destruction;

Before delving into the substance of the issues raised, it should be noted that the present procedure is initiated as a consequence of the denial of any of the rights regulated by data protection legislation (access, rectification, erasure, restriction, portability, and objection) and aims to ensure that the corresponding measures are taken to duly restore the guarantees and rights of the affected party.

Therefore, in this case, only those issues raised by the claimant that fall within the scope of the aforementioned data protection complaint procedure will be analyzed and assessed.

Regarding whether the requested access is appropriate or not, it should be noted that, in accordance with the provisions of paragraphs 1 and 2 of Article 4 of the GDPR previously transcribed, the voice is considered personal data. Therefore, in principle, the claimant would have the right to be provided with those recordings, under the data protection legislation.

In this regard, it must be considered that the voice is a peculiar and individual characteristic of each person that makes them identifiable; therefore, it is personal data. Consequently, the right of access to the recording of their voice requested by the claimant is indeed protected by the current data protection legislation, facilitating the provision of a copy of the requested recording to the claimant or, failing that, a transcript of its content.

That said, in the case analyzed here, the claimant exercised their right of access to the voice recording in connection with the conclusion of a contract and, after the period established in accordance with the aforementioned regulations had elapsed, their request did not receive the legally required response.

C/ Jorge Juan, 6
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28001 – Madrid
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8/9

During the processing of this procedure, the entity has stated that it had communicated to the claimant the impossibility of providing the aforementioned recording as there was no record in its internal systems related to the service contracting process linked to the data provided by the claimant. Following the allegations made in response to the information request sent by this Agency, Vodafone

has proceeded to investigate the facts again and has located in its internal systems a telephone recording related to the aforementioned process that had not been able to be located with the information initially provided by the claimant.

“(…) Consequently, with the data provided by the claimant, Vodafone has sent the claimant a new communication in which it conveys the actions taken and provides a copy of the recording of the telephone conversation held by Mr. A.A.A. with Vodafone's Customer Service on December 6, 2022 (…),” providing a copy of the communication sent, which the claimant states to have received.

This Agency only has jurisdiction over personal data, and cannot assess information concerning possible contracts signed or incidents related to them, nor resolve civil matters, such as those related to the civil or commercial validity of the contract, the proper provision of contracted services, or the interpretation of contractual clauses, regardless of whether other regulations support the obtaining of such information.

The determination of the conditions of the contractual or commercial provision, based on an interpretation of the contract signed between the parties and its proper application, must be pursued before the competent administrative or judicial bodies, as it exceeds the jurisdictional scope of the Agency.

The entity being complained against has submitted a document in which it acknowledges that the claimant's debt with Vodafone was classified as fraudulent, so the claimant currently has no debt with the entity, and their data has been deleted, sending a communication informing them of these points. Therefore, it is appropriate to formally uphold the present complaint as the right has been addressed belatedly without requiring additional actions by the data controller.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Mr. A.A.A. against VODAFONE ESPAÑA, S.A.U. However, it is not appropriate to issue a new certification by the entity being complained against, as the response has been issued belatedly, without requiring additional actions by the responsible party.

C/ Jorge Juan, 6
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28001 – Madrid
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9/9

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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